

2010 02 01

LAKEWOOD CITY COUNCIL MINUTES

Monday, February 1, 2010
City of Lakewood
City Council Chambers
6000 Main Street SW
Lakewood, WA 98499

CALL TO ORDER

Mayor Richardson called the meeting to order at 7:02 p.m.

ROLL CALL

Councilmembers Present: 7 ? Mayor Douglas Richardson; Deputy Mayor Don Anderson; Councilmembers Mary Moss, Mike Brandstetter, Jason Whalen, Walter Neary and Claudia Thomas.

Councilmember Excused: 1 ? Councilmember Mary Moss.

FLAG SALUTE

The Pledge of Allegiance was led by Mayor Richardson.

REPORTS BY THE CITY MANAGER

City Manager Neiditz announced that the site visit from the assessors of the Police law enforcement accreditation program started their review of Lakewood's police practices over the weekend, and a response should be forthcoming in 60 days. He also announced that a special memorial in honor of fallen police officers, hosted by the State Legislators, is scheduled for February 3, 2010, from 10:00a.m. ? noon orchestrated by Senators Mike Carrell and Rosa Franklin.

City Manager Neiditz reported that the City is concerned about the bridge at the south end of Pacific Highway which requires improvements. He explained that to repair the bridge and meet safety requirements, if one lane was closed, it would take four weeks to complete or, if the entire bridge was closed, it would take two weeks to complete. He indicated that staff is recommending a full bridge closure and provide ample notification to businesses and the public. He added that the improvements would commence the third week of February.

City Manager Neiditz announced that the February 8, 2010 Study Session will be a joint meeting with the Citizens Transportation Advisory Committee at the Multi-Purpose meeting at the Police Station.

City Manager Neiditz requested a 15-minute Executive Session regarding potential litigation followed by a closed session relative to collective bargaining.

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PROCLAMATIONS AND PRESENTATIONS

Youth Council Report.

The Youth Council spoke about their participation at the January 18, 2010 Martin Luther King Jr. Celebration event and planning for an upcoming Parks Appreciation Day event on April 24, 2010. A report on activities at each of the high schools was provided.

Proclamation declaring the months of February through April 2010 as Pierce County Reads.

Mayor Richardson presented a proclamation declaring the months of February through April 2010 as Pierce County Reads to Mr. David Durante, Lakewood Branch Manager, Pierce County Library System.

Clover Park School District Board Report.

Clover Park School District (CPSD) Board Director Carole Jacobs reported on the CPSD construction bond levy coming before the voters next week. She then commented on the Rotary educator of the month award for students from Oakgrove and Firwood schools on Western State Hospital grounds.

Ms. Jacobs announced that the Caring for Kids fundraising dinner auction is scheduled for February 20, 2010.

Ms. Jacobs then introduced the new CPSD Board member, Joe Vlaming.

PUBLIC COMMENTS

Speaking before the Council were:

Syl Wiles, Run for the Heart, invited the Council and the public to a run/walk fundraiser at Ft. Steilacoom Park for former Officer Kent

Mundell.

David Anderson, Lakewood resident, spoke about concerns on the proposed House Bill about gambling controls.

Dennis Haugen, Lakewood resident, spoke about management techniques and the book, Rules for Radicals. He then spoke about a public disclosure request he filed in which he was informed that no such documents were available when there had been discussions about the matter.

Congo Carter, Lakewood resident, spoke about an incident in July, 2009, in which a gun was pulled on him by Mr. Morris Quimby. He stated that the Mayor has not taken any action as reported in The News Tribune and expressed disappointment about the lack of communication.

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Denise Jefferson, Lakewood resident, asked that Morris Quimby be removed from the Public Safety Advisory Committee after Mr. Quimby pulled a gun on Mr. Carter.

Matt Sygny, Midland, Washington, spoke about The News Tribune article on the Legislature reviewing the red light camera program. He then spoke about the incident with Mr. Congo Carter and the values of people of color.

C O N S E N T A G E N D A

A. Approval of the minutes of the City Council Retreats of January 8 and 9, 2010.

B. Approval of the minutes of the City Council meeting of January 19, 2010.

C. Approval of the minutes of the City Council Study Session of January 25, 2010.

D. Approval of payroll check numbers 213, 111824 to 111846 and direct deposit check numbers 38345 to 38599, in the amount of \$886,685.68, for the period January 1-15, 2010.

E. Approval of claim voucher numbers 54512 to 54614 and 900181, in the amount of \$511,692.38, for the period ending December 31, 2009.

F. Approval of claim voucher numbers 54735 to 54864, in the amount of \$532,416.12, for the period ending January 14, 2010.

G. Approval of claim voucher numbers 54865 to 54916, in the amount of \$780,068.25, for the period ending January 20, 2010.

H. Approval of claim voucher numbers 54917 to 54942, in the amount of \$328,971.66, for the period ending January 21, 2010.

I. Approval of claim voucher numbers 54943 to 55033, in the amount of \$746,511.27, for the period ending January 28, 2010.

J. Items Filed in the Office of the City Clerk:

1. Public Safety Advisory Committee meeting minutes of October 7 and November 4, 2009.

2. Citizens Transportation Advisory Committee meeting minutes of November 3, 2009.

3. Redevelopment Advisory Board meeting minutes of November 10, 2009.

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4. Planning Advisory Board meeting minutes of November 18, 2009.

5. Parks and Recreation Advisory Board meeting minutes of November 24, 2009.

COUNCILMEMBER BRANDSTETTER REQUESTED THAT ITEM NO. A BE REMOVED FROM THE CONSENT AGENDA TO THE REGULAR AGENDA.

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COUNCILMEMBER NEARY MOVED TO ADOPT ITEMS NO. B-J OF THE CONSENT AGENDA AS PRESENTED. SECONDED BY DEPUTY MAYOR ANDERSON. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

R E G U L A R A G E N D A

A. Approval of the minutes of the City Council Retreats of January 8 and 9, 2010.

DEPUTY MAYOR ANDERSON MOVED TO AMEND PAGE 2 OF THE JANUARY 9, 2010 COUNCIL RETREAT MINUTES TO READ: "PURSUE AN APPROACH TO LIMITING GAMBLING ESTABLISHMENTS WITHIN THE CITY." SECONDED BY COUNCILMEMBER WHALEN. VOICE VOTE AS TAKEN ON THE JANUARY 8 AND 9, 2010 COUNCIL MINUTES AS AMENDED AND CARRIED UNANIMOUSLY.

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APPOINTMENTS

Motion No. 2010-07 appointing Connie Coleman-Lacadie and Darrel Shiley to serve on the Planning Advisory Board through February 11, 2015, and reappointing James Oliver to serve on the Planning Advisory Board through February 11, 2011.

COUNCILMEMBER thomas MOVED TO CONFIRM THE APPOINTMENTS OF CONNIE COLEMAN-LACADIE AND DARREL SHILEY TO SERVE ON THE PLANNING ADVISORY BOARD THROUGH FEBRUARY 11, 2015, AND REAPPOINTING JAMES OLIVER TO SERVE ON THE PLANNING ADVISORY BOARD THROUGH FEBRUARY 11, 2011. SECONDED BY COUNCILMEMBER whalen. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

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ORDINANCES

Ordinance No. 510 creating Chapter 3.22 of the Lakewood Municipal Code relative to nonpayment of outstanding accounts receivables.

COUNCILMEMBER thomas MOVED TO ADOPT ORDINANCE NO. 510. SECONDED BY COUNCILMEMBER neary. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

RESOLUTIONS

Resolution No. 2010-04 authorizing the City Manager to make and transfer short-term interfund loans from the General Fund and other appropriate funds to ensure non-negative fund balances at the close of a fiscal period.

COUNCILMEMBER BRANDSTETTER MOVED TO ADOPT RESOLUTION NO. 2010-04. SECONDED BY COUNCILMEMBER NEARY. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

Resolution No. 2010-05 ratifying the City Manager's declaration of emergency for purchasing processes employed for items and services necessary for the Police Memorial Service as a result of the loss of four police officers.

COUNCILMEMBER NEARY MOVED TO ADOPT RESOLUTION NO. 2010-05. SECONDED BY COUNCILMEMBER BRANDSTETTER. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

UNFINISHED BUSINESS

None.

NEW BUSINESS

Motion No. 2010-08 awarding a bid to Tucci & Sons, Inc., in the amount of \$419,131.82, for the construction of the Union Avenue Redevelopment - Phase 2 Project (e3000).

COUNCILMEMBER WHALEN MOVED to AWARD A BID TO TUCCI & SONS, INC., IN THE AMOUNT OF \$419,131.82, FOR THE CONSTRUCTION OF THE UNION AVENUE REDEVELOPMENT ? PHASE 2 PROJECT (E3000). SECONDED BY DEPUTY MAYOR ANDERSON. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

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BRIEFING BY THE CITY MANAGER

City Manager Neiditz commended the Public Works staff for meeting with the neighborhood, Puget Sound Energy and others about their work on constructing sewers.

City Manager Neiditz provided an update on a cease and desist order against CIAW and commended the Council for switching from CIAW to WCIA insurance.

City Manager Neiditz explained that there does not appear to be much support for HB2873 on "permitting local governments to limit social card games" this year, but that there is commitment to work on this issue in 2011. He reported that HB2780 on the traffic safety camera issue received testimony last week, and it appears that the bill does not seem to have much support.

CITY COUNCIL COMMENTS

Councilmember Brandstetter indicated that the Pacific Neighborhood Association has not been meeting due to Lisa Ikeda, former President, moving out of Lakewood. He recommended that the City help engage in re-energizing that neighborhood association and help foster some leadership in that association.

Councilmember Neary commented on the Citizens Transportation Advisory Committee and Landmarks Heritage Advisory Board

meetings he attended.

Councilmember Whalen commented on the Arts Commission meeting he attended. He then asked for a status on the \$25,000 lodging tax funds that was allocated for the Lakewood Theatre. He noted that the Arts Commission is interested in having a memorial flag in remembrance of the fallen officers.

Councilmember Thomas suggested that the Council take advantage of meeting with Secretary Paula Hammond of the State Transportation Committee as she offered to meet with Council to discuss transportation concerns in Lakewood.

Deputy Mayor Anderson commented on an Association of Washington Cities' report about electing part-time Municipal Court judges. He then spoke about the City of University Place's reduction of their police contract with Pierce County for police services and expressed concern that through mutual aid calls, such cuts could impact Lakewood's police and that the City should meet with University Place to work out a solution in paying for such services.

Deputy Mayor Anderson announced that Partners for Parks is focusing their efforts on fundraising for restrooms at Ft. Steilacoom Park.

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Mayor Richardson announced that the Lakewood Chamber of Commerce's chili cook-off is scheduled for Thursday, February 4, 2010.

Mayor Richardson asked for clarification about funding sewer improvements on Maple Avenue, and asked if reader boards will be posted about the closures on Pacific Highway due to the bridge repairs.

Mayor Richardson asked for clarification about the \$550,000 of federal funding coming to Washington State; and if it will be used for the Pt. Defiance Bypass rail project and the D to M Sounder project. Public Works Director Wickstrom indicated that, from the amount of funding requested by the State and what was actually funded, the numbers seem to suggest that the Pt. Defiance Bypass project and the D to M Sounder projects were funded.

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Executive Session

Mayor Richardson announced that Council will recess into Executive Session for approximately 15 minutes to discuss potential litigation.

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Council recessed into Executive Session at 9:10 p.m. and reconvened at 9:25p.m. At 9:25 p.m., Mayor Richardson announced that Executive Session would be extended an additional five minutes. The Council reconvened at 9:30 p.m.

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Mayor Richardson announced that Council will recess into a closed session to discuss employee relations pursuant to R.C.W. 42.30.140(4).

ADJOURNMENT

There being no further business, the meeting adjourned at 9:30 p.m.

DOUGLAS G. RICHARDSON, MAYOR

ATTEST:

ALICE M. BUSH, MMC

CITY CLERK